

Court seal

Respondent:

(Instructions: If appropriate box at left cannot be checked, check box in right margin and describe deficiency in red by the box.)

1.	PRELIMINARY		Deficiency
(a)	The Respondent has been noted in default.		1(a)
(b)	No Answer has been filed by the Respondent.		1(b)
	The Respondent's Answer has been withdrawn.		
	The Respondent's Answer has been struck out.		
(c)	A Central Divorce Registry clearance certificate has been received.		1(c)
2.	SERVICE		
(a)	Service is not required because the spouses have filed a joint petition.		2(a)
	The Affidavit of Service has been filed.		
	A signed acknowledgement of services has been filed.		
(b)	The Respondent was served personally at _____		
	_____	(address)	
			2(b)
	The Respondent was served by substituted service.		
3.	AFFIDAVITS		
(a)	An affidavit of the Petitioner has been filed on the motion.		3(a)
(b)	An affidavit of the Respondent has been filed on the motion.		3(b)
(c)	An affidavit of _____ has been on the motion.		3(c)
(d)	The Notice of Motion indicates that oral evidence will be presented.		3(d)

4. **CLAIM FOR RELIEF**
 - (a) The Petition contains only a claim for divorce. 4(a)
The Petition contains a claim for relief under an Act, other than a divorce, and refers to the Act in each claim.
 - (b) The Petition contains a claim for support or a division of property and sets out the nature and amount of relief claimed and the amount of support claimed for each dependent. 4(b)
 - (c) The Petition contains a claim for inclusion of terms of a separation agreement of previous court order and refers to the specific provisions to be included. 4(c)
5. **GROUND FOR DIVORCE**

The Petition claims divorce on this ground of

 - (a) separation since _____, and the Petitioner's Affidavit was sworn at least one year after that date. 5(a)
 - (b) adultery 5(b)
 - (c) cruelty 5(c)
6. **PROOF OF MARRIAGE**
 - (a) A certificate of marriage or equivalent thereof from another jurisdiction has been filed, and particulars correspond to those in the Petition. 6(a)
 - (b) The Petition states that it is impossible to obtain a certificate of marriage or equivalent thereof from another jurisdiction, and the Affidavit gives the date and place of marriage. 6(b)
7. **RESIDENCE**

The Petition indicates that the
petitioner
respondent
has resided in Prince Edward Island since _____,
a period of at least one year before the Petition was issued. 7
8. **CHILDREN**
 - (a) There are children of the marriage.
There are no children of the marriage.
 - (b) The Director of Child Protection has not intervened. 8(b)
The Family Court Counsellor has filed a report.
There has been no child advocate appointed.
There has been no counsel appointed for the child.
The Office of the Children's Lawyer has intervened.
9. **OTHER COURT PROCEEDINGS OR ORDERS**
 - (a) Family law proceedings or orders have been identified 9(a)
 - (b) Criminal proceedings or orders have been identified 9(b)
 - (c) Civil protection proceedings or orders have been identified 9(c)
10. **NOTICE TO PETITIONER**

The Petitioner has been informed of any deficiencies noted on this certificate and has requested the motion be submitted despite them. 10

DATE: _____ Issued by: _____
Registrar